

Data Sovereignty Statement

Aboriginal Community Controlled Health Organisations

This statement sets out how Wirrah Pty Ltd handles data generated through the delivery of its workplace inclusion and resilience program to Aboriginal Community Controlled Health Organisations (ACCHOs). It addresses data location, ownership, access, aggregation, end-of-contract treatment, and the governance framework that binds these commitments.

Wirrah recognises that Indigenous Data Sovereignty is not a compliance matter. It is a governance right grounded in the United Nations Declaration on the Rights of Indigenous Peoples and operationalised in Australia through the Maïam nayri Wingara Indigenous Data Sovereignty Principles (2018 National Summit, Canberra). This statement is structured to align with those principles and to make that alignment verifiable, not merely asserted.

At a Glance

The table below summarises the key data governance commitments in plain language. Full detail follows in each section.

Question	Answer
Where is our data stored?	Inside your organisation's own Microsoft 365 environment, in Australian datacentres. No data is held by Wirrah or GraceX.
Who owns the data?	Your organisation owns all data, unconditionally. Wirrah and GraceX hold no ownership rights over any data generated through the program.
Who can access it?	Only your designated staff, with role-based access you control. Authorised service providers engaged by Wirrah access data within your environment only, under access controls you administer. No data leaves your tenancy.
What happens to psychologist insights?	The insights report is written and stored inside your Microsoft 365 environment. No response data is transmitted externally at any point.
Can aggregated data be shared?	Only if your organisation separately and voluntarily authorises it. Any shared data is stripped of all ACCHO-identifying information before leaving your environment. Wirrah holds and governs the resulting aggregate dataset as custodian.
What happens at end of contract?	Wirrah removes its technical infrastructure from your environment. All data remains in your possession. Wirrah holds no copies.
What framework governs this?	The Maïam nayri Wingara Indigenous Data Sovereignty Principles (2018), the leading Australian framework, referenced by NIAA, AIATSIS and Aboriginal Affairs NSW.
Who is accountable for data governance?	Wirrah Pty Ltd, ABN 38 696 995 794, a First Nations majority-owned company. Tanika Perry, Worimi and Bundjalung woman, holds 51% ownership and final authority over all governance decisions.

1. Data Location

All data generated through the Wirrah program is stored inside each ACCHO's own Microsoft 365 environment. This includes:

- Employee wellbeing check-in responses (Tuesday Check-In)
- Anonymous survey responses (Thursday Insights)
- Aggregated response data and trend information
- Insights reports prepared by Wirrah's organisational psychologist
- Participation and engagement records
- Action items and leadership recommendations

Each ACCHO operates its own independent Microsoft 365 tenancy. Wirrah's technical infrastructure is deployed into that tenancy by GraceX Pty Ltd as the platform provider. At no point does Wirrah, GraceX, or any of their personnel hold, copy, or transfer data to an external environment.

Physical storage location. For Australian-billed Microsoft 365 tenants, Microsoft stores SharePoint, Exchange, Teams, and Forms data at rest within Australian datacentres, consistent with Microsoft's data residency commitments for the Australia geography (Microsoft Learn, 2026). ACCHOs can verify their data location via Microsoft 365 Admin Centre, Settings, Organisation Profile, Data Location.

Encryption. Sensitive data, including all survey responses, is encrypted using AES-256 encryption. The encryption key is generated within the ACCHO's tenancy and does not leave it. Wirrah and GraceX have no access to encryption keys.

Platform dependency. Data residency is subject to Microsoft's product terms for the Australia geography. Wirrah will notify ACCHOs of any material change to Microsoft's data residency commitments that affects the location of stored data.

2. Data Ownership

Each ACCHO owns all data generated through its participation in the Wirrah program, unconditionally. Ownership is not qualified by the licence agreement, the procurement arrangement, or the duration of the engagement.

Wirrah and GraceX do not acquire any ownership right over ACCHO data by virtue of:

- Providing the platform infrastructure
- Deploying or operating the GraceX application within the ACCHO's tenancy
- Delivering psychologist interpretation services
- Holding any licence, agreement, or contract with the ACCHO or any procuring funder

This position is consistent with the Maiam nayri Wingara principle that Indigenous peoples have the right to exercise ownership over Indigenous Data through its creation, collection, access, analysis, interpretation, management, dissemination, and reuse.

Definition of Indigenous Data in this context. In line with the Maiam nayri Wingara Collective's definition (2018), Indigenous Data for the purposes of this statement means information or knowledge, in any format or medium, which is about and may affect the ACCHO's staff, operations, and community, both collectively and individually. This includes all data generated through the Wirrah program.

3. Data Access

Access to ACCHO data is granted strictly on a need-to-know basis. Access rights are determined by the ACCHO's own Microsoft 365 administrator, not by Wirrah or GraceX.

3.1 ACCHO staff access

ACCHO leaders and designated staff access data through the GraceX SharePoint interface within their own environment. The ACCHO controls who holds what level of access at all times and may modify or revoke access rights without involvement from Wirrah or GraceX.

3.2 Authorised service provider access

Authorised service providers engaged by Wirrah or GraceX, including the organisational psychologist and technical support personnel, access ACCHO data within the ACCHO's tenancy only. This access is:

- Limited to the minimum required to perform the contracted service
- Subject to the access controls administered by the ACCHO's own Microsoft 365 administrator
- Logged within the ACCHO's tenancy audit trail
- Restricted to the scope and duration agreed at the time access is provisioned

Neither Wirrah nor GraceX personnel hold standing administrative access to any ACCHO tenancy. No data is transmitted outside the ACCHO's tenancy by any service provider at any point.

4. Aggregated Data Exchange

Wirrah compiles a sector-level aggregated dataset only where each contributing ACCHO has provided separate, voluntary, and documented consent. This dataset is designed to support the sector's own evidence base, inform service improvement, and demonstrate aggregate program value to funders. Participation in the program does not constitute consent to contribute to this dataset.

4.1 Voluntary participation only

No ACCHO is required to contribute to the aggregated dataset as a condition of program participation. Consent to aggregation is documented independently from the participation agreement and may be withdrawn at any time without affecting the ACCHO's access to the program.

4.2 De-identification process

Before any data is included in the sector-level dataset, Wirrah applies a de-identification process that removes all ACCHO-identifying information. The resulting dataset cannot be used to identify or draw conclusions about any individual ACCHO. Only anonymised, aggregated indicators are included.

4.3 Custodianship and funder access

Funders procuring Wirrah's services receive aggregate program reports showing sector-level outcomes. These reports are derived from the dataset and contain no ACCHO-specific information.

Wirrah Pty Ltd is the custodian of the underlying sector-level aggregated dataset. As a First Nations majority-owned entity led by Tanika Perry, a Worimi and Bundjalung woman, Wirrah is accountable to First Nations governance principles in its management of this dataset.

No funder, government agency, or third party becomes a custodian of the aggregated dataset by virtue of procuring Wirrah's services or receiving a report derived from it. Any third-party access to the underlying aggregate data requires a separate data-sharing agreement initiated by Wirrah, subject to the same de-identification requirements.

4.4 Purpose limitation

The aggregated dataset may only be used for:

- Sector-level evidence and program evaluation
- Reporting to procuring funders on aggregate program outcomes, never ACCHO-specific outcomes
- Contributing to the First Nations workplace health evidence base

The aggregated dataset may not be used for commercial profiling, individual ACCHO performance assessment, funding allocation decisions that disadvantage individual ACCHOs, or any purpose not explicitly agreed in the data-sharing arrangement.

5. End-of-Contract Treatment

At the conclusion of the engagement between Wirrah and an ACCHO, the following applies:

- Wirrah and GraceX remove all technical infrastructure deployed into the ACCHO's tenancy. This includes the Azure Automation Account, Azure Application, Runbook, and GraceX SharePoint site configuration.
- All data, including survey responses, insights reports, participation records, and action items, remains in the ACCHO's possession within its own Microsoft 365 environment. The ACCHO retains full ownership and control.
- Wirrah holds no copies of ACCHO data after decommissioning. Because data was never held outside the ACCHO's tenancy, no deletion or return process is required on Wirrah's part.
- Any contribution the ACCHO had made to the sector-level aggregated dataset is retained only in its de-identified, anonymised form. The ACCHO cannot be identified or extracted from the aggregate after contribution.

6. Governance Framework: Maiam nayri Wingara Alignment

Wirrah's data governance practices are structured to align with the five key principles of the Maiam nayri Wingara Indigenous Data Sovereignty Collective (2018 National Indigenous Data Sovereignty Summit, Canberra). These principles form the leading Australian framework for Indigenous Data Sovereignty and are referenced in the NIAA Framework for Governance of Indigenous Data (2024),

the AIATSIS Code of Ethics for Aboriginal and Torres Strait Islander Research, and the data governance guidance applied by Aboriginal Affairs NSW and DPIRD.

The table below maps each principle to Wirrah's specific delivery commitments.

#	Principle	What it requires	How Wirrah delivers it
1	Control of the data ecosystem	Indigenous peoples control creation, stewardship, analysis, dissemination, and infrastructure of their data.	Each ACCHO owns and controls its own Microsoft 365 tenancy. Wirrah deploys infrastructure into that tenancy under the ACCHO's authority. Wirrah never holds, controls, or accesses the tenancy independently.
2	Contextual and disaggregated data	Data is accessible at individual, community, and First Nations levels as needed by the data owner.	Data is stored at the ACCHO level by default. Disaggregation below that level is controlled entirely by the ACCHO. Wirrah has no access to individual-level data at any point.
3	Relevant data for self-determination	Data empowers sustainable self-determination and effective self-governance for Indigenous peoples.	The Thursday Insights cycle produces actionable reports for ACCHO leadership to inform their own decisions. The program is designed to serve the organisation's internal governance, not to produce data for external parties about the ACCHO.
4	Accountable data structures	Data systems are accountable to Indigenous peoples and First Nations.	Wirrah Pty Ltd is 51% owned and led by Tanika Perry, a Worimi and Bundjalung woman. Governance authority over all data practices sits with a First Nations majority-owned entity, not a platform vendor.
5	Protective data	Data protects individual and collective interests, with no harm to individuals or communities.	Survey responses are encrypted at the point of collection using AES-256 encryption. The encryption key never leaves the ACCHO tenancy. No individual employee can be identified from any data Wirrah or its service providers ever access.

7. Accountability and Governance Authority

Responsible entity. Wirrah Pty Ltd, ABN 38 696 995 794, incorporated under the Corporations Act 2001 (Cth), New South Wales.

Governance authority. Tanika Perry, Worimi and Bundjalung woman, Co-Founder and Managing Director, holds 51% of Wirrah Pty Ltd and retains casting authority over all governance decisions,

including data governance. Cultural authority over program design and data interpretation is reserved exclusively to Tanika Perry and cannot be overridden by any other party.

Platform provider. GraceX Pty Ltd provides the Microsoft 365-native platform infrastructure under a commercial licence agreement with Wirrah. GraceX's obligations under this statement are binding through its service relationship with Wirrah. The organisational psychologist is engaged under this licence and operates within the access constraints defined in Section 3.2.

Privacy Act compliance. Wirrah's operations comply with the Privacy Act 1988 (Cth) and the Australian Privacy Principles.

Review. This statement will be reviewed annually, or sooner if material changes occur to the platform architecture, the regulatory environment, or Wirrah's operating arrangements.